



POLICE DEPARTMENT

March 12, 2026

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202410768 (Incident Date: September 15, 2024) regarding Police Officer Darian Wesler, Tax No. 965903 (PODS Case No. C-036661)

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Police Officer Darian Wesler and has determined that the proposed penalty of a Schedule "B" Command Discipline is not warranted.

In this matter, Officer Wesler stopped an individual that was obstructing vehicular traffic and brought him back to the stationhouse to issue him a summons for disorderly conduct. Officer Wesler did not activate his body-worn camera until he successfully chased the individual down. The CCRB substantiated an allegation of improperly detaining the individual and an allegation for failing to timely activate his body-worn camera against Officer Wesler. After reviewing the evidence, the Police Commissioner finds that Officer Wesler violated Department policy by not timely activating his body-worn camera. However, the Police Commissioner finds Officer Wesler's detaining of the individual was within Department guidelines. Officer Wesler was not required to issue the summons on scene nor was he prohibited from issuing the individual a summons at the stationhouse.

Therefore, based on the foregoing, the Police Commissioner directs that Police Officer Wesler receive no disciplinary action for the alleged improper detainment, however, he issued a Schedule "A" Command Discipline with the forfeiture of one (1) vacation day and formalized training for the improper use of body-worn camera.

Sincerely,


Michael P. Baker
Assistant Chief
Commanding Officer
Police Commissioner's Office

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